



File No.: EXP202311560

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 14, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against GALENICUM HEALTH, S.L.U. with NIF B63078075 (hereinafter, the defendant).

The reasons on which the complaint is based are as follows:

The complainant states that in the facilities of the defendant at ***ADDRESS.1, there is no informational sign regarding the video surveillance system of the defendant.

Along with the notification, images of the location of the cameras and an email sent by the complainant to the defendant highlighting the facts are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out on August 31, 2023, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on September 11, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on September 22, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On October 10, 2023, the defendant responded to this forwarding indicating the following:

The person responsible for the video surveillance processing is: GALENICUM HEALTH S.L.U. with NIF: B63078075 and the contact email is: ***EMAIL.1.

The provider of the video surveillance system is: ***COMPANY.1 with ***NIF.1 and the contact email is: ***EMAIL.2

To view the images, access to the system is required, which can only be accessed by personnel from ***COMPANY.1; this is done in the basement, which is a room not accessible to other staff.

The security company responsible for the installation, maintenance, and management of the video surveillance system is ***COMPANY.1, with which a service provision contract was signed on March 29, 2022. This contract also regulates the relationship between the data controller and the data processor, specifically in clause fourteen (14.2) and technical specifications in the annexes.

The obtained images are kept for a period of thirty (30) days.

It is a video surveillance system with 21 cameras, and photographs of cameras EXT-C9, EXT-C16, and EXT-C17 are attached.

The video surveillance system has several informational signs located in various places in the company: main door, laboratory entrance, ground floor lobby, and emergency exit, with photographs provided in the response to the forwarding (document ANNEX I ANNEX II ANNEX III) that allow verification that these signs indicate the following:

“MONITORED AREA

In accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (GDPR) and Organic Law 3/2018 of December 5 on the protection of personal data and guarantee of digital rights (LOPDGDD), it is informed that GALENICUM HEALTH S.L.U., located at

***ADDRESS.1, will process the personal data contained through the installed video surveillance systems for the purpose of preserving the security of the facilities and individuals.
(art. 5.1 GDPR) your data will be kept for the legally established periods, with the maximum retention period being one month (art. 22.3 LOPDGDD) you can consult additional and detailed information on data protection at: protecciondedatos@galenicum.com you can exercise your right

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by means of a request addressed to the following email address legal@galenicum.com.
Additionally, a copy of the service provision contract of the claimed party with ***COMPANY.1 is provided.

The AEPD, after a detailed study of the complaint filed regarding the lack of informative signage, has confirmed that such signage exists but that the video surveillance system of the claimed party has cameras that excessively capture the public road, focusing on the sidewalk and part of the roadway where vehicles pass and where some are parked.

THIRD: On October 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity GALENICUM HEALTH, S.L.U. (...)

FIFTH: On October 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the claimed party, on October 30, 2024, submitted a written statement of allegations in which, in summary, it expressed the following:

- GALENICUM HEALTH S.L.U., with NIF: B63078075, address: ***ADDRESS.1 and contact email: ***EMAIL.1, is a company committed to the privacy and security of the personal data processed.
- That the data processing carried out is done in accordance with the applicable regulations, including the General Data Protection Regulation 679/2016 and Organic Law 3/2018 on the protection of personal data and the guarantee of digital rights.
- That the installed video surveillance system only records private areas of the GALENICUM headquarters and in no case records or allows the viewing of adjacent land that is not owned by it, nor the public road.
- That the cameras EXT-C9, EXT-C16, and EXT-C17 do not capture the public road; rather, the images recorded by them belong to private areas of Galenicum, which are separated from the public road by architectural barriers such as vegetation, parking barriers, etc.
- That the following images are submitted as evidence, in which it can be seen that there are architectural barriers and that black filters have been implemented so that the public road cannot be visualized:

IMAGE NO. 1: In the following image, it can be observed that the focus is limited to the vicinity of Galenicum and that the image is delimited by a fence and a hedge.

IMAGE NO. 2: In this image, it is observed that the space is delimited by an access door. The area where the vehicles are located belongs to the members' parking, whose vehicles belong only to Galenicum staff, and the part visible before the door is a side of the vicinity, which provides access to the laboratory area and belongs to Galenicum.

IMAGE NO. 3: The following image belongs to the interior space, that is, the members' parking, without the vehicles.

IMAGE NO. 4: The last image records the emergency exit, which is observed to be delimited by a

fence and a hedge.

Additionally, the layout of the facilities is provided, where it can be seen that the GALENICUM facilities comprise outdoor spaces with private access that are completely separated from the public road.

SEVENTH: On December 9, 2024, a resolution proposal was issued proposing:

That the Director of the Spanish Agency for Data Protection sanctions GALENICUM HEALTH, S.L., with NIF B63078075, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €500 (five hundred euros).

That the Director of the Spanish Agency for Data Protection orders GALENICUM HEALTH, S.L., with NIF B63078075, that pursuant to Article 58.2.d) of the GDPR, within one month, prove that it has proceeded to remove the cameras EXT-C9, EXT-C16, and EXT-C17 from the current location or to reorient them, so that the viewing of the images evidences that the public road is not captured, or the issue can also be corrected by masking or shading the excessive area.

EIGHTH: On December 11, 2024, the resolution proposal was notified to the claimed party, who on December 20, 2024, reiterated the statements made on October 30, 2024, in response to the initiation agreement notified on October 21, 2024. These statements are included in the sixth antecedent. From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: In the facilities of the entity being claimed at ***ADDRESS.1, there are installed surveillance cameras that capture the public road.

SECOND: The entity being claimed, in response to the initiation agreement of this sanctioning procedure, sends to the AEPD images obtained from the surveillance system where the sidewalk and parked cars can be seen. This surveillance system is located at ***ADDRESS.1, from which it follows that the responsible party for the surveillance system in question is the entity being claimed.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to the allegations

In this case, it is claimed that there are surveillance cameras installed in the facilities of the claiming party without an informative sign regarding this, despite being focused on the public road.

In response, the entity being claimed provides photographs of the images captured by its surveillance system, stating that this surveillance system installed in its building covers outdoor spaces of private access that are completely separated from the public road.

In this regard, the AEPD must indicate that from the photographs provided, it appears that the cameras would be capturing areas beyond the environment of the installations of the entity being claimed, as they capture the public road that provides access to the building or the public road captured at the emergency exit of the same, which must be corrected by masking or shading the excessive area, since

in no case will the use of surveillance practices beyond the environment of the installations be permitted, nor can images of third-party private space and/or public space be obtained without duly justified cause, which means that it is capturing to a greater extent than permitted, as one of the photographs sent by the entity being claimed shows the entire sidewalk, and although they have placed a hedge at the entrance, that does not mean that the sidewalk is private.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation.

In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined, stating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment or combination, restriction, erasure or destruction;”

The images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported surveillance system is in accordance with the provisions of the GDPR.

IV

Infringement

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or camcorders for the purpose of ensuring the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary may be processed.

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to fulfill the purpose for which they are processed. The processing must be adjusted and proportional to the intended purpose. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the data minimization principle in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior government authorization.

On some occasions, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location.

In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the

installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area. Therefore, the placement of cameras aimed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the persons present in those spaces.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

- 1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR. "Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means."
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.
- 4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.
- 5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the processing of personal data they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

In this specific case of the provided photographs, it is evident that cameras EXT-C9, EXT-C16, and EXT-C17 are capturing public roads, which must be corrected by masking or shading the excessive area.

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VI

Administrative infringement of Article 83.5 a) GDPR

In accordance with the available evidence, it is considered that the facts presented violate the provisions established in Article 5.1.c) of the GDPR, thus constituting an infringement classified under

Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VII

Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

For all these reasons, it is considered that the corresponding sanction is an administrative fine of 500 euros for the infringement of Article 5.1 c) of the GDPR. It should be noted that voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system in accordance with the current regulations.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for scaling the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on GALENICUM HEALTH, S.L., with NIF B63078075, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).

SECOND: TO ORDER GALENICUM HEALTH, S.L., with NIF B63078075, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to demonstrate compliance by proceeding to remove or reorient the cameras EXT-C9, EXT-C16, and EXT-C17, from their current location or to reorient them in such a way that the viewing of the images does not capture the public road, or the incident can also be corrected by masking or shading the excessive area.

THIRD: TO NOTIFY this resolution to GALENICUM HEALTH, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that

appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the

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Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

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